

STATE OF NEW YORK

1934--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. MAHER -- read once and referred to the Committee on Economic Development -- reference changed to the Committee on Ways and Means -- recommitted to the Committee on Ways and Means in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to an exemption for certain property from the prohibition of alcohol sales within a certain distance from certain buildings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 7 of section 64 of the alcoholic beverage control law is amended by adding a new paragraph (e-18) to read as follows:

(e-18) Notwithstanding the provisions of paragraph (a) of this subdivision, the authority may issue a retail license for on-premises consumption for a premises which shall be located within two hundred feet of a building occupied as a church, synagogue or other place of worship, provided such premises constitutes a premises for the sale of food or beverages at retail for consumption on the premises located wholly within the boundaries of the county of Orange, bounded and described as follows:

All that certain tract, piece or parcel of land, situate, lying and being in the village of Walden, town of Montgomery, county of Orange and state of New York, bounded and described as follows:

Commencing at the intersection of the southernly line of West Main Street with the westerly line of Walnut Street at the point forty one degrees, thirty three minutes, thirty eight point five seconds North and seventy four degrees, eleven minutes, twenty four point two seconds West (41°33'38.5" N, 74°11'24.2" W);

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD04968-02-6

1 Running thence southerly along the westerly side of Walnut Street ni-
2 nety (90') feet more or less to the point forty one degrees, thirty
3 three minutes, thirty seven point sixty five seconds North and seventy
4 four degrees, eleven minutes, twenty four point two seconds West
5 (41°33'37.65" N, 74°11'24.2" W);

6 Thence westerly parallel with West Main Street fifty nine (59') feet
7 more or less to the point forty one degrees, thirty three minutes, thir-
8 ty seven point sixty five seconds North and seventy four degrees, eleven
9 minutes, twenty four point nine seconds West (41°33'37.65" N,
10 74°11'24.9" W);

11 Thence northerly parallel with Walnut Street ninety (90') feet more or
12 less to the point forty one degrees, thirty three minutes, thirty eight
13 point five seconds North and seventy four degrees, eleven minutes, twen-
14 ty five West (41°33'37.65" N, 74°11'25" W);

15 Thence easterly along the southerly side of West Main Street fifty
16 nine (59') feet more or less to the corner, the point or place of begin-
17 ning. Said premises known as 79 West Main Street, Walden, New York.

18 Being and intended to be the same premises described in a deed from
19 Wolfe Myrna to Godinez Reinaldo dated January 9th, 2023 and recorded
20 with the Orange County Clerk's Office on February 24th, 2023, Document
21 Number 15384-1710.

22 § 2. This act shall take effect immediately.